

The Rajasthan Grant of Subsidy for Purchase of Diesel Generating Sets Regulations, 1982

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[The Rajasthan Grant of Subsidy for Purchase of Diesel Generating Sets Regulations, 1982](#)

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On account of the prevalent power shortage in Rajasthan it is necessary to encourage Small Scale Industries to instal their own Diesel Generating Sets for generating power to meet their requirements, the State Government hereby makes the following Regulations:-

1.

Short title, extent and commencement.

- These Regulations shall be called 'The Rajasthan Grant of Subsidy for Purchase of Diesel Generating Sets Regulations, 1982.'

They shall extend to the whole of the State of Rajasthan.

They shall come into force, from 1-1-1982 and shall apply to the Small Scale Industries only.

2.

Definitions.

(a)

"Department" means the Industries Department of Government of Rajasthan.

(b)

"Director" means the Director of Industries, Rajasthan.

(c)

"Government" means the Government of Rajasthan.

(d)

"Diesel Generating Set" includes equipment, instruments and machinery and other electrical accessories required for generating electricity.

(e)

"District Level officer" (DLO) means Joint Director/Deputy Director/Assistant Director and District Industries officer of the Industries Department/Incharge of the respective Districts/District Industries Centre.

3.

Eligibility.

- The Subsidy will be available only to the Small Scale Industries having investment of not more than Rs. 20 lacs in the machinery and plant in the unit and registered as a Small Scale Industrial Unit with the Department.

4.

Quantum of Subsidy

- (i) The Subsidy shall be granted up to 50% of the capital cost of Diesel Generating Set subject to maximum of Rs. 2.50 lacs. In case any industry has received or is eligible to receive Central or State Investment Subsidy in respect of investment on Diesel Generating Sets, the amount of Subsidy under these Regulations would be reduced by an equal amount.

(ii)

No unit would be generated Diesel Generating Set Subsidy over Rs. 2.50 lacs.

5.

Procedure for Grant of Subsidy

- (i) The applicant unit shall claim Subsidy in respect of Diesel Generating Sets in the prescribed form as per Annexure I.

(ii)

The application should be accompanied with a copy of licence issued by the Rajasthan State Electricity Board for setting up of the Diesel Generating Set as also a Certificate of an Engineer of the Rajasthan State Electricity Board in respect of the date on which it started functioning.

(iii)

An affidavit of the applicant to the effect that the claims made by him are correct and genuine and that in case the same are found otherwise he would be liable to refund the full amount of Subsidy to the Government alongwith interest @ 12% per annum.

(iv)

The claims shall be submitted to the District Level officer giving complete details of investment on the Diesel Generating Set and other equipment and electrical accessories purchased alongwith the bills, receipts of payments etc.

(v)

The District-level officer shall, on receipt of claim, inspect the premises and verily the correctness of the claim of Subsidy and satisfy himself about the genuineness of the claim.

(vi)

He will then submit the case to the competent authority for sanction of the Subsidy

6.

Powers to Sanction Subsidy

- The competent authority to sanction Subsidy would be the Director of Industries, Rajasthan, Jaipur. He may however, delegate powers to sanction Subsidy upto Rs. 25,000/- to the District-level Subsidy Committee after obtaining sanction from the Government for the purpose.

7.

Conditions for Grant of Subsidy

- (i) The unit will have to give a declaration in the prescribed proforma alongwith the application that Diesel Generating Set so purchased and installed, for which Subsidy is claimed from the Government, shall not be transferred from the premises of the unit to any other place or person within a period of 5 years from the date of its purchase without the permission of the Director.

(ii)

That the power so generated will be used for its own manufacturing, or lighting purposes.

(iii)

The unit availing Subsidy assistance under these Regulations shall allow the Director or the Accountant General, Rajasthan, or any persons authorised by the Government or the Director/Accountant General to inspect the working and accounts of the industry at all reasonable time and for that purpose shall grant all reasonable facilities.

(iv)

The unit will execute a Bond as per Annexure II with the Department before disbursement of the Subsidy

8.

Manner of Payment.

- (i) The sanction will be issued in the form Annexure III by the competent authority.

(ii)

On receipt of sanction, the applicant unit will submit bill of claim for Subsidy in G.A. Form No. 118 to the District-level officer for counter-signatures and draw the amount from the Treasury.

9.

Breach of Conditions.

- In case of breach of any of the conditions of the sanction/Bond the applicant shall be liable to refund the Subsidy amount alongwith penal interest @ 12% per annum and the amount to be refunded shall be recoverable as an arrears of land revenue under the Rajasthan Land Revenue Act, 1956.

Annexure-I

Application Form for Grant of Subsidy for Purchase of Diesel Generating Sets

1. Name of the Applicant unit-

(a)

office Address :

(b)

Factory Address :

2. Name of the applicant and his status in the unit.

3. Small Scale Industrial unit :

Registration Number and date.

4. Names of the items manufactured and for which registered :

5. Details of the Diesel Generating Set equipment and other electrical accessories purchased for which Subsidy is claimed-

(a)

Serial number :

(b)

Name of the equipment accessories etc. :

(c)

Name of the Supplier :

(d)

Bill No. and date (enclose Copy) :

(e)

Amount

(f)

Payment receipt No. and date (enclose copies)

(g)

Subsidy claimed

6. (a) Licence No. and date from RSEB to set up diesel generating set.

(Note. - Please enclose certified copy of the Licence together with a certificate about starting of diesel generating set from an officer of RSEB not below the rank of Executive Engineer).

(b)

Whether it is a new or second hand diesel generating set.

(Note. - If second hand please enclose certificate of an officer of RSEB not below the rank of Executive Engineer to the effect that the set would be able to function for a period of at least 5 years.)

7. State whether there are any State Govt, dues outstanding against the applicant?

8. (a) State whether any other application has been submitted or Subsidy sanctioned to the applicant.

(b)

If yes, the details of previous application, if any submitted by the applicant for grant of Subsidy and amount.

I/We hereby certify that the particulars given to the best of my/our knowledge and belief true and correct and no material fact has been concealed or withheld.

Place.....

Dated.....

Signature of Applicant

Designation

Declaration

I/We hereby give an undertaking that we shall maintain the said Diesel Generating Set properly in working conditions for a period of 5 years and shall abide by all the conditions under "Rajasthan Grant of Subsidy for Purchase of Diesel Generating Set Regulations, 1982."

We further undertake that the power generated from the Diesel Generating Set for which Subsidy is being claimed will be used for our own use exclusively and that the generating set will not be disposed off or transferred by me/us for a period of five years from the date of its functioning without the prior permission from the Director of Industries.

Signature of the Applicant.

Annexure-II

Bond

(Under the Rajasthan Grant of Subsidy for Purchase of Diesel Generating Sets Regulations, 1982.)

This Bond is made on this day of 198 by..... (here-in-after referred to as the grantee of the one part) in favour of the Governor of Rajasthan (here-in-after referred to as the State Government) of the other part.

Whereas the grantee has applied to the Director of Industries, Rajasthan, Jaipur, for the grant of a Subsidy of Rs.....in words only under the Rajasthan Grant of Subsidy for Purchase of Diesel Generating Set Regulations, 1982.

And whereas, the Director of Industries has agreed to grant him the said Subsidy on the terms and conditions hereinafter contained.

Now, therefore, in pursuance of the said agreement and in consideration of the said amount of Rs.....(Rupees in words.....) only to be paid by the State Government to the grantee hereby covenants and bind himself to the State Government as follows :

(i)

That the Diesel Generating Set, purchased from the above financial assistance (Subsidy amount) shall not be shifted to any other place or premises or transferred to any other person within a period of five years, without prior permission of the Director of Industries.

(ii)

That the grantee shall use the power generated by the said Diesel Generating Set exclusively in his own factory and will keep it in proper working condition and shall maintain the set properly.

(iii)

That the grantee shall allow Director of Industries, or the Accountant General, Rajasthan, or any person authorised by

the Government or the Director or the Accountant General to inspect the working and accounts of the industry at all reasonable time and for that purpose shall grant reasonable facilities.

(vi)

That in case it found out by the Director that the grantee has committed any breach of the conditions mentioned above or Subsequently incorporated in the Regulations the Director after given him an opportunity to be heard shall be empowered to recover back the whole amount of Subsidy paid to him together with 12% per annum interest from the date of payment of Subsidy This amount may be recovered as an arrear of land revenue in accordance with the provisions of the Rajasthan Land Revenue Act, 1956.

(v)

That the stamp duty payable in respect of this bond shall be payable by the grantee.

In Witness thereof the bond is hereby executed and signed by the grantee on this day hereinabove mentioned.

Signed by the Grantee

Name :.....

Status :.....

Name of the Industries.....

Witness No. 1.

with address.

Witness No. 2.

with address.

Annexure-III

Directorate of Industries, Rajasthan Udyog Bhawan, Tilak Marg, Jaipur

Order

Sanction is hereby accorded for the payment of Rs.....(Rupees in words.....) only to M/s..... on account of Subsidy for the purchase of Diesel Generating Set under the Rajasthan Grant of Subsidy for Diesel Generating Set Regulations, 1982.

The expenditure is chargeable to head A sum of Rs (Rupees) only is allotted to the for making payments.

This sanction is valid upto 31st March, 198.....

Director of Industries

Rajasthan, Jaipur.

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